

Draft - expert review pending

This unit is complete and passes the platform's automated checks, but no reviewer has read it yet. Treat its sources and claims with care.

Topic 4.4 - Duties, rights and the OHS professional

A real classroom situation

At the mill gate, the trainee teacher's uncle is asked what he would do if the line were unsafe. He laughs without unkindness. "Do? I would keep working. There are fifty men outside the gate who want my seat." His nephew, who has read this unit, does not argue. He writes down the question the topic exists to answer: what is owed to a worker who cannot afford to refuse?

Explanation

Duties and rights; strategies and goals

Occupational safety and health law rests on a triangle of duties: the **employer's duty of care**, to provide a workplace without avoidable harm, the information, training and equipment that safety needs; the **worker's duties**, to follow the safe procedures and use the protection provided, and to report what is dangerous; and the **government's duty**, to set the law, inspect and enforce it. Against the duties stand the rights, strongest for the weakest party: the right to know the hazards, the right to the protection the law requires, the right to refuse work with imminent serious danger, and the right to raise concerns without punishment.

The duties and rights triangle

Who	Duties in one line	Rights or powers in one line
Employer	a workplace without avoidable harm; information, training, equipment	holds the duty of care
Worker	follow safe procedures, use protection, report dangers	know, protect, refuse, raise, without punishment
Government	set the law, inspect, enforce it	improvement notices, penalties, prosecution

The rights exist because the weakest party cannot bargain for safety: fifty men wait outside the gate.

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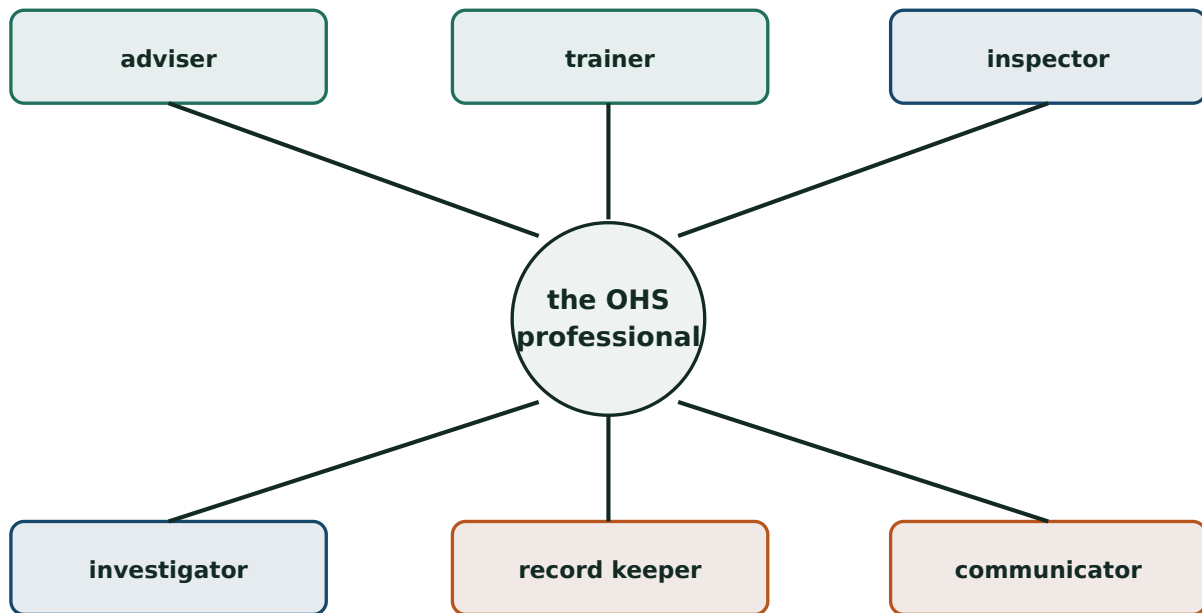
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The strategies that follow are as old as the triangle: give the weakest party the information, the protection and the voice to make the duty enforceable. The goals are measurable versions of the same: every worker informed, every hazard controlled, every refusal investigated, every concern answered. The uncle's answer at the gate is why the rights matter: a worker who can be replaced will not enforce his own safety by bargaining; the system must carry it for him.

Roles and responsibilities of occupational health and safety professionals

The OHS professional is the person the system employs to make its safety work: in Pakistan, factory welfare and safety officers, and the growing corps of HSE officers in industry and construction. The role is a web, not a chair.

The OHS professional: six roles, one web



The professional advises, checks and records; the employer holds the legal duty.

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- **Adviser:** brings the hazard knowledge to management's decisions, before the machine is bought, not after the injury.
- **Trainer:** turns the rules into a language the floor speaks.
- **Inspector:** walks the workplace with the register from Unit 3 and the authority to ask for a stop.
- **Investigator:** after an incident, finds the lining-up failures, not the guilty worker.
- **Record keeper:** maintains the registers the law and the system both read.
- **Communicator:** carries the floor's knowledge upward, which is the direction it travels worst.

One boundary defines the profession: the professional advises, checks and records, but the employer holds the legal duty. An officer who is heard is worth ten who are certified; the Karachi fire's factories had paperwork too.

A worked example. Give the uncle's mill a real officer, and run the web once. The officer measures the dust, advises extraction, trains the sweepers who clean the byssinosis-causing waste, inspects the guards monthly, investigates the bale near-miss, keeps the register, and tells the owner what the coughs cost

in lost days, in the owner's own language, money (Khan et al., 2024). Every spoke is ordinary; together they are the system.

Common misconception. "Safety is the safety officer's job." The officer is the system's instrument, not its owner. Where the philosophy layer (Topic 4.3) is sound, the officer's advice is taken and the duty is discharged; where it is not, the officer joins the workers in being exposed, with a clipboard.

Activity: The triangle in practice

Work in three groups: employer, workers, government. Each group receives the same scenario card, a mill with unguarded rollers and cotton dust, and writes its duties, the rights it must honour, and the one action it would take first. Then the three groups meet and negotiate a single one-page agreement. Allow 25 minutes, then five minutes to read the agreements aloud.

Check your understanding

1. Name the three corners of the duties triangle and one duty of each.
(Remember)
2. Why does the right to refuse dangerous work exist, given the uncle's answer at the gate? (Understand)
3. Which of the OHS professional's six roles is weakest in most Pakistani workplaces, and what does its weakness cost? (Analyze)
4. A safety officer's report is ignored by the owner. Which layers from Topic 4.3 have failed, and who still holds the duty? (Apply)

Summary

OSH law rests on the triangle of employer, worker and government duties, with rights, know, protect, refuse, raise, designed to make the weakest party's safety enforceable. The strategies give that party information, protection and voice; the goals are measurable versions of the same. The OHS professional works the web, advising, training, inspecting, investigating, recording, communicating,

while the employer holds the duty. Where management's philosophy is sound the officer is heard; where it is not, paperwork is the only thing that survives.

Self-assessment checklist

Sign in to sync your ticks across devices.

- ☐ I can state the triangle and one duty per corner.
- ☐ I can name the four worker rights and explain why each exists.
- ☐ I can list the OHS professional's six roles with one example each.
- ☐ I can explain who holds the duty when an officer is ignored.

Try this at your practicum school

Schools rarely have a safety officer, so someone else carries the role informally. Find out who checks the building, the equipment and the first-aid box, and which two of the six roles that person plays. Write four sentences naming the person's role, not their name.

Summative task

Write 160 to 200 words on the following.

Draft the one-page safety agreement your practicum school's staff and head teacher could sign: three duties of the employer, two duties of the staff, two rights the agreement protects, and the one line that says who checks and how often.

Mini-rubric

Criterion	What a strong response does
Triangle applied (Understand)	Duties and rights correctly distributed, not all on one party

Criterion	What a strong response does
Feasible (Apply)	Every line is something a real school could adopt
Checking defined (Analyze)	Names who checks, what, and how often
Clarity and register	Agreement language, plain and short; within the word count

Further reading

- World Health Organization. *Occupational health* (health topic): <https://www.who.int/health-topics/occupational-health>
- Khan, M., Muhmood, K., Mahmood, H. Z., & Khaliq, I. H. (2024). The health and economic burden of dust pollution in the textile industry of Faisalabad, Pakistan. *Journal of the Egyptian Public Health Association*, 99(1). <https://doi.org/10.1186/s42506-024-00150-2>
- Harrington, J. M., & Gill, F. S. (Eds.). *Occupational Health*. Blackwell. (guide-recommended book, cited by reference only)

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